

STATE OF NEW YORK

1186--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 9, 2025

Introduced by M. of A. SIMON, MEEKS, BORES, RAGA, DAVILA, REYES, LUNS-FORD -- Multi-Sponsored by -- M. of A. BRONSON, R. CARROLL, FALL, GLICK, HUNTER, LUPARDO, McDONOUGH, STECK, TAGUE, TAYLOR, WALSH -- read once and referred to the Committee on Education -- recommitted to the Committee on Education in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to mandatory early screening for dyslexia

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The education law is amended by adding a new section 320 to
2 read as follows:

3 § 320. Mandatory early screening for dyslexia. 1. All school districts
4 shall be required to conduct full and individual screenings in accord-
5 ance with this section for purposes of early identification, support,
6 intervention and accommodation of children with dyslexia and other
7 learning disabilities. For purposes of this section, the term "dyslexia"
8 means a specific learning disability that is neurobiological in origin
9 and that is characterized by unexpected difficulties with accurate or
10 fluent word recognition and poor spelling and decoding abilities, which
11 difficulty typically results from a deficit in the phonological compo-
12 nent of language and that is inconsistent with the person's intelli-
13 gence, motivation, and sensory capabilities and the provision of effec-
14 tive instruction.

15 2. Mandatory early screening for dyslexia shall be conducted by each
16 school district using an assessment tool that includes targeted ques-
17 tions and student tasks designed to quickly and reliably gather certain
18 relevant functional and developmental information consistent with the
19 research findings in this area and supported by the findings in the
20 Report of the National Reading Panel from 2000, from all children

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 screened pursuant to this section. Such questions and tasks shall be
2 aligned with developmental benchmarks in specific precursors correlated
3 with reading acquisition based on the recognized reading science.
4 Mandatory early screening shall commence during pre-kindergarten or
5 kindergarten, whichever is earlier, and shall continue thereafter on an
6 annual basis until such child has successfully completed the second
7 grade. The assessment tools used shall be selected from an approved
8 list of tools deemed to be valid and reliable, with training and subse-
9 quent coaching provided to teachers to ensure fidelity to the assessment
10 model as per the research methodology provided in the development of
11 such tools.

12 3. Upon completion of the administration of each mandatory early
13 screening, a copy of each early screening report and any other findings
14 shall be given to the parent and/or guardian and teachers and teaching
15 assistants of each child identified as at risk for reading failure, and
16 the individual designated in subdivision four of this section.

17 4. Each school district shall designate an individual to maintain
18 complete and accurate records, including copies of each early screening
19 report, for all children for the duration of each child's educational
20 pursuit or until such child reaches the age of sixteen, whichever is
21 later. The designated individual shall provide resources and materials
22 to the parent and/or guardian of any child who displays low phonemic
23 awareness and other indications of dyslexia.

24 5. School districts shall ensure that the assessment results are used
25 in a proactive manner, ensuring that findings of risk for reading fail-
26 ure are followed up immediately by the provision of evidence-based meth-
27 ods of instruction and intervention in the identified areas of need to
28 ensure that risk does not turn into failure.

29 § 2. This act shall take effect immediately.